

LEGAL METHODS II LECTURE NOTE ON USE OF SOURCE MATERIALS

1.0 The Law Library and Legal Research

Law Library is a specialised library containing legal materials - statutes, law reports, textbooks, journals, dictionaries, digests, newspapers and so on. Law libraries can be found in various High courts and also the Court of Appeal, Supreme Court, NBA Libraries, University Law Libraries and so on.

The law librarian enables researchers, legal practitioners, judges, including students of various kinds perform doctrinal legal research, find relevant precedents and authorities.

Legal Research is the process of finding and analysing the law to solve a legal problem. Proper Legal research enables the researcher to know where to find the law. a good lawyer need not know all the law, but must know where to find the law.

1.1. Basic Steps in conducting proper legal research:

1. Identify the legal issue.
2. Locate relevant primary sources such as the Constitution, statutes, cases (as earlier discussed). Check if the law has been amended or repealed.
3. Consult secondary sources for explanation where the primary sources are not adequate.
4. Analyse and apply the law to the facts.

1.2 Types of Research:

There are two major acceptable approaches to legal research writing in Nigerian Law Faculties, Colleges and Research Institutes, each of which has distinctive features. They are:

- a. Doctrinal Legal Research
- b. Non-Doctrinal Legal Research

Doctrinal legal research is conceptual/library based which involves analysing legal rules, books, written materials and principles from statutes and cases on the subject matter of research. It also involves consulting online research materials. The approach is the traditional approach of researching into law. the legal researcher basically look for the available source materials in the subject area of research and examines, appraises, criticises, evaluates, analyses and uses the information obtained as a basis for making recommendation for decision making, enactment of laws, regulations and rules.

Non-doctrinal legal research is also referred to as Empirical legal research. It involves studying how law operates in practice by collecting and analysing data. It involves using questionnaires and other data collection options to obtain information to answer research questions.

1.3 Indexing and Identification of Library Materials

The librarian plays a very important role in the law library and it is an added advantage where the librarian is also a lawyer, as required in law Libraries in Nigeria. The librarian performs several functions including indexing and cataloguing materials. These are necessary to ensure quick identification of relevant and available materials in the library.

Most books are identified by at least six elements:

- i. The Cover
- ii. Author's name
- iii. Publisher
- iv. Title
- v. Place of publication
- vi. Date of Publication.

Law libraries organise materials for easy retrieval. Books are not arranged by the colour of their covers or sizes, rather they are arranged in a systematic and logical way which enables a researcher to locate relevant books with minimal effort in good time. The systems of classification are:

- a. Library of Congress classification
- b. Dewey Decimal classification

A quick way to understand the classification method adopted in a law library is to pull out a book from the shelf and check how the call mark (unique identification number) on the book is written. If the call mark begins with a letter for example-K108.7, it is the Library of Congress classification. If the call mark begins with a number, for example 642.13, it is the dewey decimal system.

2.0 Case Citation

When citing a case contained in a Law Report, the following information are required:

Name of parties (in italics), year reported, Volume number (part number in bracket) page or range of pages as appropriate. For example:

Okoye v Lagos State Government [1990] 3 NWLR (Pt 126)115

Where a law report does not have the style indicated above, use the style contained in the law report. A case citation tells you where to find a case in law reports.

2.1 Unreported cases:

When a case is unreported, it should be cited as follows:

Name of parties (in italics); then the remaining information should be enclosed in the same bracket: (suit/case no, name of court that decided the case and date of delivery of the decision. For example:

The State v Airwaves Communications Limited.(FHC/J/CRC/10/2025 , Federal High Court, Jos Judicial Divison, 17 June 2025 unreported)

Nigerian Association of Law Teachers NALT Guide on Citation 2025 -

3.0 Legal Opinions, Analysis, Argument and legal Writing

A Legal Opinion is a formal written statement given by a lawyer after assessing a specific legal matter. It provides an in-depth analysis of the applicable laws, regulations and case laws, outlining the potential risks, rights, and expected legal outcomes for a client, with regard to a particular case.

3.1 The Structure of a legal opinion is as follows:

1. Facts: Brief summary of relevant facts.
2. Issues: Legal questions to be answered.
3. Law: State applicable rules from statutes, cases, constitution.
4. Application: Apply law to facts.
5. Conclusion/Advice: Give clear answer and recommendations.

3.2 A legal argument is a persuasive opinion by a legal practitioner to a client and such opinion should be made using the IRAC rule.

3.3 A good lawyer must develop proper legal writing skills. Lawyers write several documents such as legal opinions, letters, deeds of transfer, wills, claims and other processes. Each of these has established rules and structure. A good lawyer must practice to gain mastery of the relevant skills. However, proper legal writing must be clear, precise, objective, without the use of verbose words and ambiguity. Authorities should be cited correctly and grammatical errors corrected.